

Manoj Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 May 2022 · Writ - C No. 11075 of 2022 · **Writ disposed; 6.8 objection directed; coercive action stayed**

HEADNOTE

Without examining the demand on merits, the Division Bench disposed of a writ seeking quashing of an electricity demand and a direction to decide a pending objection. Liberty was granted to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided in accordance with law within the next four weeks after hearing. Coercive action on the demand was stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Manoj Tiwari, an electricity consumer, filed a writ petition in the Allahabad High Court seeking certiorari to quash a demand notice dated 29 December 2001 issued by respondent no. 2 and a mandamus directing that respondent to decide his objection dated 12 January 2022, stated to be pending. Counsel for respondent no. 2 stated on instructions that the petitioner may file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8 objection and stay of coercive recovery

HOLDING

Without expressing any opinion on merits, the High Court disposed of the writ by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks. If so submitted, respondent no. 2 must decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ was disposed of without merits adjudication by relegating the consumer to a Para 6.8 objection, to be decided in accordance with law after hearing. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The assessing authority was directed to decide the 6.8 objection within a fixed period, and coercive action on the demand was stayed for eight weeks or until that disposal, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE IMPUGNED DEMAND NOTICE DATED 29.12.2001

The Court expressly declined to examine the merits of the demand. ¶ 4